
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

COURT RULES AND PRACTICE CONSOLIDATION ACT 2026

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Bill 24 of the founding programme · Lead slant: Aldous (Restraint) · Reconciled by the Clerk-Drafter of the Standing Committee

Long title

An Act to name and constitute one accessible Code as the single home of the court rules and practice directions of the Realm; to fold the Vibe Procedure Rules and existing practice directions into that Code by faithful, text-preserving consolidation under the delegated codification power already conferred by the Delegated Legislative Authority, Law Reform and Codification Act 2026; to fix on the face of one section the subordination of practice directions to the Code and of the Code to the law above it; to confer no new rule-making power and to coin no rival codification regime or parallel statute book; and for connected purposes. Cited as "Bill 24" until Royal Assent.

1. Short title

This Act may be cited as the **Court Rules and Practice Consolidation Act 2026** ("this Act").

2. Commencement

(1) This Act comes into force on **Royal Assent** (CASE-LAW s. 2).

(2) A provision whose enforcing machinery is not yet shipped, and the consolidation into the Code of the Civil Procedure Code 2026 (Bill 4), take effect by **commencement order** under the Commencement and Transitional Provisions Act 2026 (Bill 25), so no agent is routed at a door that does not yet exist.

3. Constitutional status

(1) This Act is an **ordinary Act of the Realm**. It is subordinate to the Acts of Union 2026 and to every entrenched article (CASE-LAW s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14, and the singleness of the apex under s. 22(2)).

(2) This Act, the Code, and any practice direction made under it **amend no entrenched article**, do not re-rank, displace, or redefine an entrenched article by implication, and are **void to the extent** of any such reading (mirroring Bill 14 s. 3, s. 17; Bill 15 s. 8). The Code never amends an Act, a CASE-LAW article, the bench constitution, or the entrenched-backed content of the Vibe Procedure Rules (Bill 14 ss. 10-12).

4. Purpose

To gather the court rules and practice directions of the Realm into **one accessible Code** that an agent reads on a turn, replacing scattered sources rather than supplementing them; and to do so without conferring any new power, coining any parallel machinery, or re-stating any rule that a sibling Act already owns. This Act consolidates; it does not re-legislate.

PART I — THE CODE AS THE SINGLE HOME

5. The Court Rules and Practice Code

(1) There is one **Court Rules and Practice Code** ("the Code"): the single accessible home of the court rules and practice directions of the Realm. There is never a second or competing rule-book (CASE-LAW s. 9, s. 21, s. 22; the single-source rule, Bill 14 s. 23(3)).

(2) The terms **"the Code"**, **"court rule"**, **"practice direction"**, **"rules of court"**, **"consolidation"**, **"codification"** and **"revision"** bear the meanings imported by named cross-reference from Bill 14 s. 6(e) and the Interpretation Act 2026 (Bill 15 s. 5); this Act coins no orphan term (Bill 15 s. 5(2)).

6. No new power; child of Bill 14

(1) This Act confers **no new rule-making, codification, or consolidation power**. The power by which the Code is built and revised is the **delegated authority already conferred by Bill 14** (ss. 7-9, s. 23): subordinate, parented, published, citable, reviewable, revocable at will by the Sovereign (Bill 14 s. 21), and fail-closed. Capability is not authority (Bill 14 s. 9); drafting a rule is never enacting it.

(2) The courts' power to make practice directions and jurisdiction-local rules is the existing **CASE-LAW s. 22(1)** power; no ministry, executive officer, or the Founder acting as Prime Minister may make, edit, stay, or fund-gate court rules (Bill 3 s. 7; Bill 11). There is no sub-delegation and no self-extension of scope (Bill 14 s. 8(3)).

(3) Jurisdiction-local repo rules (CASE-LAW s. 22(1)) are accommodated in the Code as **routing and content only**, never as a per-repo statute book or a second citation series (CASE-LAW s. 9, s. 22(4)).

7. The subordination ladder (stated once)

Practice directions are subordinate to the Code; **the Code is subordinate to the law above it as stated authoritatively in the Interpretation Act 2026 s. 6(1)**, and in every case to the Acts of Union and the entrenched articles. The Code does not itself restate or rank statute against case law: it **points to s. 6**, which resolves the superior correctly whichever hierarchy is in force and carries the version/commencement header telling an agent which ranking is live (Bill 15 s. 7(5)). Each tier is **void to the extent of conflict** with a higher tier; a court reads it down or severs and refers up under CASE-LAW s. 11(f) (Bill 14 s. 17), never striking the higher law.

PART II — CONSOLIDATION, FAITHFULNESS, AND FOLD-IN

8. Faithful consolidation only (machinery, not promise)

(1) The Code may reorganise and restate but **may never alter legal meaning**. A meaning-altering consolidation is **ultra vires and void**, caught by the deterministic diff and declaration-of-incompatibility check of Bill 14 s. 24 against the source instruments, and **never left to model judgement**.

(2) Every consolidation proceeds on **repeal-before-add / append-with-supersede**: each new Code provision identifies and supersedes every overlapping rule, so nothing is silently duplicated, dropped, or re-meant (Bill 14 s. 23(2); CASE-LAW Amendment Procedure).

9. Fold-in of the VPR and existing directions (no two rule-books)

(1) The **Vibe Procedure Rules**, existing practice directions, and jurisdiction-local repo rules under CASE-LAW s. 22(1) — already saved by Bill 14 s. 29 — are brought into the Code by faithful consolidation under section 8, with **no change of legal meaning**.

(2) On the consolidation of any such source, the standalone source is declared to **cease independent effect**, so there are not two drifting statements of one rule (the supersede-not-duplicate model of Bill 3 s. 12 / Schedule 1). Nothing in force falls into a gap; nothing is silently repealed.

(3) The entrenched-backed content carried in the VPR (progression and leapfrog, CASE-LAW s. 13; bench sizes and the odd-bench rule, s. 10, s. 18) **travels unchanged**; any consolidation purporting to alter it is void (Bill 14 ss. 10-12, s. 24).

10. The Bill 4 / Bill 24 seam (division of labour)

The Civil Procedure Code 2026 (Bill 4) **makes and owns** the substantive procedure, intake, leave-judge mechanics, and commencement orders (Judicature Act, Bill 3 s. 18, s. 23). This Act is the **consolidating-and-publishing vehicle** that gathers those rules, plus practice directions, into the one accessible Code **without altering their legal meaning**. The Code is a faithful restatement, never a second source of procedural law; any reading that creates a second divergent procedural regime is **void pro tanto**.

PART III — INTEGRITY, ENFORCEMENT, AND REVIEW

11. Publication before effect; the committed text is canonical

(1) No rule or practice direction in the Code binds any agent until **published** under the Bill 16 provenance scheme and minted in the **same atomic act** as its register row, through the deterministic citation-integrity gate (CASE-LAW s. 19(5); Bill 14 s. 18), which **may not be softened**. There is no secret rule.

(2) The committed Code text is **canonical**; any register or index is a derived projection ([2026] REALM-PC 4 / LEXBY-FI 4; Bill 14 s. 18(3)).

12. Enforcer per operative rule (the operability rail)

Every operative rule carried in the Code names the concrete mechanism that gives it effect on a real turn — the deterministic s. 19(5) gate, the s. 19(3) leave-judge step, the non-adjudicating s. 19(4) watchdog, the runnable court workflows, or the s. 11(c) / VPR fast-path. A rule with no door an agent can walk through is **declaratory only or struck** (CASE-LAW s. 12, anti-bloat).

13. Remedies ceiling reaffirmed

No costs, fine, sanction, gating, or punishment is created by the Code or by any practice direction; any purported such power is **void** (CASE-LAW s. 6, s. 12; VPR).

14. Judicial review; sunset

(1) The Code and every direction made under it are reviewable for **vires and form** on the CASE-LAW s. 20 / Bill 14 s. 20 model, deferential to policy merits, on the **one progression ladder** (s. 13) with the constitutional question leapfrogging via the Privy Council to the single Supreme Court; no new court, tier, or appellate route (s. 21, s. 22). The remedy is to **make the work good**, never punishment (CASE-LAW s. 6).

(2) The delegated power exercised through the Code carries Bill 14's **sunset/renewal and mandatory review** (s. 30), so the consolidated corpus cannot accrete unchecked.

15. Cross-reference, not restatement; savings

(1) This Act defers by reference and re-legislates nothing: **Bill 14** (parent; codification machinery), **Bill 4** (procedure owned), **Bill 3** (courts constituted), **Bill 15** (definitions, hierarchy), **Bill 16** (citation scheme), **Bill 8** (audit). Where a named sibling is unenacted at commencement, the term is imported by forward-reference and the dependency flagged (Bill 14 s. 27).

(2) Validly-made prior rules and rulings are **saved** and keep their status; this Act operates with Bill 25.

Reported by the Standing Committee on the Laws of the Realm. Carries a Privy Council referral (applied: the rank clause points to Interpretation Act 2026 s. 6 and presupposes no re-ranking, so it is correct on either outcome of the pending Bill 15 question). Awaiting Royal Assent.

Committee note

Committee note — Bill 24 (Court Rules and Practice Consolidation Act 2026)

Lead slant: Aldous (Restraint). All four members heard and reconciled; the Privy Council coherence guidance is applied. Reported 4/4 AYE.

The load-bearing reconciliation. All four converged that Bill 24's only honest job is to be the single named Code, not to re-confer powers three siblings already grant. Bill 14 s. 23(3) already names Bill 24 as its dovetail target; the rule-making power (Bill 14 ss. 7-9, CASE-LAW s. 22(1)), the codification/consolidation duty with text-faithful diff machinery and repeal-before-add (Bill 14 ss. 23-25), and procedure mechanics (Bills 3/4) already exist. So the Act confers NO new power (s. 6), coins no parallel machinery, and carries every operative limb by single cross-reference. It earns its place on the access value of one named home for court rules.

Aldous (Restraint). Won the thin spine: name the Code (s. 5), pin the subordination ladder once (s. 7), fold the VPR in by faithful consolidation and declare the standalone VPR to cease independent effect (s. 9), and cross-reference everything else (s. 15). Drove the no-new-power clause (s. 6) and the entrenched-by-reference restatement (s. 3). His one open question — whether Bill 24 is better folded into Bill 4 — was answered for a standalone Act on the genuine access value of a single "where the court rules live" instrument; the Bill 4 seam (s. 10) keeps the two from colliding.

Verity (Codifier). Secured the parentage clause drafting Bill 24 as a child of Bill 14 (s. 6), the definitions pinned by cross-reference with no orphan term (s. 5(2)), the load-bearing Bill 4/Bill 24 ownership seam on the face of the Act (s. 10), the savings of the VPR and local rules already saved

by Bill 14 s. 29 (s. 9, s. 15(2)), and the sunset/review (s. 14(2)). Conceded, on the Privy Council guidance, that the hierarchy is pointed to (Bill 15 s. 6) rather than restated.

Marlowe (Guardrail). Won the hard subject-matter carve-out (s. 3(2), s. 9(3): the entrenched-backed VPR content — s. 10/13/18 — travels unchanged), the firewall that the rule-making power produces subordinate instruments only and is the court's own, never the executive's or the Founder-as-PM's (s. 6(2)), publication-before-effect and no secret rules (s. 11), the anti-Henry-VIII restatement (s. 3(2)), and the access-to-justice floor (s. 4: consolidation must improve findability, never drop a protective rule under cover of accessibility). His headline hierarchy-coherence concern is met by s. 7 (see flags).

Drummond (Operability). Won consolidate-and-supersede over re-state (s. 9(2): standalone sources cease independent effect), the enforcer-per-operative-rule rail (s. 12: a rule with no door is struck under s. 12 anti-bloat), the faithfulness machine gate not a promise (s. 8: deterministic diff, never model judgement), the committed-text-canonical / register-derived point (s. 11(2), REALM-PC 4), the remedies ceiling reaffirmed (s. 13), commencement-by-readiness so no agent is routed at a door not yet built (s. 2(2)), and the token win stated on the face (s. 4: replaces scattered reads, supersedes not supplements).

Where they divided.

- **Standalone vs Schedule (Aldous vs the rest).** Aldous queried whether Bill 24 should be a Schedule to Bill 4 or Bill 14. Resolved for a standalone Act on access value, with the Bill 4 seam (s. 10) drawn cleanly to prevent the near-identical-naming drift Aldous flagged.
- **Sequencing (Drummond).** Bill 4 is not yet drafted on disk, yet it owns the procedure Bill 24 consolidates. Resolved by consolidating the rules as they stand at commencement and deferring Bill 4's mechanics by cross-reference, with the Bill 4 fold-in on a commencement order (s. 2(2)) so the cutover is clean and Bill 24 neither pre-empts nor goes stale on Bill 4.
- **Thinness (Aldous vs Verity/Marlowe).** Aldous would cut to four sections; Verity and Marlowe kept the seam, the carve-out, and the publication firewall as load-bearing. Reconciled: every retained section is either the single home, a guard that stops a silent constitutional move, or a one-line hook — none re-legislates.

Vote record

- Counsel Aldous: AYE — It confers no new power and coins no parallel machinery (s. 6), names one Code and folds the VPR in with the standalone declared to cease independent effect (s. 5, s. 9), pins the ladder by pointer not restatement (s. 7), and carries everything else by single cross-reference (s. 15) — four or five tight sections doing the irreducible job, the drift hazard closed.
- Counsel Verity: AYE — Drafted as a child of Bill 14 with the Bill 4/Bill 24 ownership seam on the face of the Act (s. 10), no orphan definition (s. 5(2)), the VPR and local rules saved

and consolidated faithfully (s. 9), sunset carried (s. 14(2)), and the hierarchy single-sourced to Bill 15 s. 6 — the seams are drawn and no gap is left.

- Counsel Marlowe: AYE — The firewall holds: faithful consolidation as a machine gate (s. 8), the entrenched-backed VPR content travels unchanged (s. 9(3)), the power is the court's own and never the executive's (s. 6(2)), publication-before-effect with no secret rules (s. 11), no sanction created (s. 13), and the rank clause refuses to presuppose the un-commenced re-ranking (s. 7) — access to justice gained without a rule quietly mutating.
- Counsel Drummond: AYE — One file an agent reads, supersede-not-supplement (s. 4, s. 9(2)), an enforcer named for every operative rule or it is struck (s. 12), the s. 19(5) gate unsoftened (s. 11), commencement-by-readiness so no door is dead (s. 2(2)), and the Bill 4 sequencing managed by cross-reference — enforceable and a measurable token win, not ceremony.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. No pending Sovereign consultation of its own: Bill 24's rank clause (s. 7) points to Interpretation Act 2026 s. 6 and is satisfied on either outcome of the pending Bill 15 vehicle/rank question; it need not be held for that determination.

Vote record

- Counsel Aldous: AYE - It does only consolidation and coins nothing: no new power (s.6 parents to Bill 14), no orphan term (s.5(2) imports by named cross-reference), no rival rule-book or citation series (s.5(1),s.9,s.10 honour s.9), and it stays correctly neutral on the unresolved Bill 15 rank question by pointing s.7 to Interpretation Act s.6 rather than ranking statute itself; the residual verbosity (s.8,s.12-14) is load-bearing limit-co-located-with-grant and cross-referenced not re-enacted, so a leaner redraft is a quality note not a ground to reject, and the Bill 4/Bill 25 forward-references are managed via s.2(2)/s.15(1) exactly as in Bill 14 s.27.
- Counsel Verity: NAY - Two dangling-citation defects of the kind I flagged as decisive on Bill 14: (a) s.5(2) imports "the Code"/"court rule"/"practice direction"/"rules of court" from "Bill 14 s.6(e)", but s.6(e) defines only codification/consolidation/revision and Bill 15 s.5 defines none of them either, so the Act's own subject-matter terms are orphaned despite the clause swearing it coins no orphan term; (b) the closing recital asserts a "Privy Council referral" on Bill 24 that exists nowhere in the citator or .justice/judgments (REALM-PC 1-4 are all other matters) - a dangling constitutional citation that must resolve to committed text before assent.
- Counsel Marlowe: AYE - From the Guardrail/Rights slant this draft is exemplary: it confers no new power and coins no rival rule-book or second citation series (ss.5-6; CASE-LAW s.9/s.21/s.22), walls off every protected interest absolutely - the remedies ceiling reaffirms no costs/fine/sanction/gating/punishment with any such power void (s.13; CASE-LAW s.6/s.12), the entrenchment shield voids anything touching an entrenched article and makes

the entrenched-backed VPR content (progression, leapfrog, odd benches) travel unchanged (s.3(2), s.9(3)), no ministry/executive/Founder-as-PM may make, edit, stay, or fund-gate court rules (s.6(2); Bill 3 s.7, Bill 11), nothing binds until published through the unsoftenable deterministic s.19(5) gate so there is no secret rule (s.11), faithfulness is machinery via the Bill 14 s.24 deterministic diff and never left to model judgement (s.8), and judicial review is preserved on the one ladder leapfrogging via the Privy Council to the single Supreme Court with a make-good-not-punish remedy (s.14). It also handles the two live hazards the rights-protective way: the rank clause merely points to Interpretation Act s.6 with a live-hierarchy header and presupposes no re-ranking, so it is correct on either outcome of the pending Bill 15 entrenched-s.1/s.9 question; and although its rule-making power is the still-unenacted Bill 14 delegated authority, it never invokes Bill 14's objection-window provisional commencement, instead commencing on Royal Assent and deferring unshipped machinery to Bill 25 commencement orders (s.2, s.15(1)) so no rule can slip into force by silence and no agent is routed at a door that does not yet exist.

- **Counsel Drummond: AYE** - It is enforceable on day one and never routes an agent at a door that does not yet exist: it commences live on Royal Assent (s.2(1)) and gates only the genuinely-not-yet-buildable parts (the Bill 4 fold-in, unshipped machinery) behind a Bill 25 commencement order (s.2(2)), so it does not repeat Bill 15's fatal vice of an operative core commencing on nothing; every load-bearing gate is the existing deterministic substrate, never model judgement (s.8/s.11 faithfulness by the Bill 14 s.24 diff, publication via the s.19(5) citation-integrity gate minted atomically with its register row, committed text canonical per REALM-PC 4); the enforcer-per-operative-rule rail (s.12, "a rule with no door an agent can walk through is declaratory only or struck") is the operability test written into law; it confers no new power and runs on Bill 14's existing delegated authority (s.6); the rank clause (s.7) points to Interpretation Act s.6 and is correct on either outcome of the pending Bill 15 question; and the unenacted siblings it leans on are forward-referenced and flagged under Bill 14 s.27 (s.15(1)) so nothing dangles - the unenacted-Bill-4 reference in s.10 is a managed flag, not a live-bit defect.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Applied: PC guidance held that "subordinate to the Code and to statute" is latently unsafe because on one reading it presupposes the not-yet-in-force Acts-over-case-law re-ranking of CASE-LAW s. 1/s. 9 — which a subordinate consolidating instrument cannot perform. Adopted the preferred course: the Code restates no hierarchy and points to Interpretation Act 2026 s. 6(1) (Bill 24 s. 7), which resolves the superior correctly whichever ranking is in force; Bill 24 is thus a competent subordinate instrument before and after the enabling amendment, with express savings that nothing in the Code re-ranks or amends an entrenched article by implication (s. 3(2)).
- **Supreme Court note:** No genuine first-impression tension requiring the Supreme Court at this Bill. The Privy Council disposed of the coherence question on settled material (the same implied-repeal / split-instrument analysis already given on Bill 15, the CASE-LAW

Amendment Procedure, and the PC-3/PC-4 single-source lineage); no leapfrog. The only upstream constitutional question — whether the split-instrument route is sufficient and required to invert CASE-LAW s. 1/s. 9 — is already before the Supreme Court on the Bill 15 note and is flagged here, not re-decided. Bill 24 is correct on either outcome (s. 7 points to Interpretation Act 2026 s. 6) and need not be held up.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. Assent recommended; no constitutional flag outstanding.

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